

- RAG Learning

2.4 Relations Between the Branches

Politics — Edexcel (9PL0) — Component 2: UK Government, Section A

This closes Component 2 Section A and pulls the whole paper together: it asks how the judiciary, the executive and the legislature relate to one another, and where sovereignty finally sits. It is the topic most likely to produce a 30-mark question requiring material from every other part of the paper.

Supreme Court — the UK's highest court, created by the Constitutional Reform Act 2005.

Judicial neutrality — judges set aside their own political views when deciding cases.

Judicial independence — judges are free from control or pressure by the executive and legislature.

Judicial review — the courts examining the lawfulness of decisions and actions of public bodies.

Elective dictatorship — Hailsham's term for a government with a Commons majority facing few effective constraints between elections.

Ultra vires — acting beyond the powers granted by law.

Legal sovereignty — where ultimate law-making authority formally resides.

Political sovereignty — where power is exercised in practice.

Four freedoms (EU) — free movement of goods, services, capital and people.

Exam Tip: The 2017 spec treats EU membership as current. The UK left on **31 January 2020** and the transition ended on **31 December 2020**; the European Union (Withdrawal) Act 2018 governs retained law. The EU's impact on UK government remains examinable — write it accurately in the past tense.

1. The Supreme Court

Composition and appointment

Twelve justices, created by the **Constitutional Reform Act 2005**, which also removed the Law Lords from the legislature and stripped the Lord Chancellor of judicial functions. Appointment is through an independent selection commission, replacing the previous system of appointment on the Lord Chancellor's recommendation.

Independence and neutrality

Independence — how it is secured	Neutrality — why it is questioned
Security of tenure — judges hold office during good behaviour and can be removed only by both Houses	The senior judiciary is drawn disproportionately from a narrow educational and social background
Salaries charged on the Consolidated Fund, so not subject to annual political approval	Griffith's argument that judges share a common outlook that shapes their decisions
Judicial Appointments Commission, removing political patronage	Judicial review inevitably involves evaluating the reasonableness of government action
The sub judice rule limiting parliamentary comment on live cases	Some rulings have obvious political consequences
Separation from the legislature since 2005	Countered by: judges give reasons publicly, follow precedent, and frequently rule against expectation

What the Court can and cannot do

- **Can** interpret legislation compatibly with Convention rights wherever possible (HRA s.3), issue a **declaration of incompatibility** (s.4), rule executive action unlawful, and determine devolution disputes.
- **Cannot** strike down or invalidate an Act of Parliament. The provision remains in force and it is for Parliament to decide whether to respond.

This is the single sharpest contrast with the US Supreme Court, and it follows directly from parliamentary sovereignty.

Key cases

Case	Held	Significance
<i>A v Home Secretary (2004)</i> Belmarsh	Indefinite detention of foreign terrorism suspects incompatible with Articles 5 and 14	Shows the power of a declaration — and its limit: the regime ended because Parliament chose to replace it
<i>Miller (2017)</i>	Article 50 could not be triggered by prerogative, because withdrawal would remove rights conferred by statute	Prerogative cannot nullify statutory rights; Parliament must authorise
<i>Miller/Cherry (2019)</i>	The advice to prorogue for five weeks was unlawful and void	Prerogative powers previously thought non-justiciable are reviewable; there are legal limits on preventing Parliament sitting
<i>Evans (2015)</i>	The ministerial veto over FOI disclosure was exercised unlawfully	Ministers cannot simply override a judicial determination

Both *Miller* cases are best read as the Court **defending Parliament against the executive**, not displacing Parliament. That framing is what makes the charge of judicial overreach contestable rather than obvious.

2. Is the Supreme Court too powerful?

Yes	No
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Rulings have determined the course of the most contested political questions of the period	It cannot strike down primary legislation — only interpret and declare
Judicial review has expanded, and the HRA gives courts an explicit role in assessing compatibility	It decides only cases brought before it; it cannot initiate
<i>Miller/Cherry</i> made justiciable a prerogative power previously thought beyond the courts	Parliament can reverse its rulings by legislating, and has
Unelected judges settling questions previously resolved politically	In both <i>Miller</i> cases it asserted Parliament's authority, not its own

Worth noting: the charge is often made about rulings the speaker dislikes. The more interesting explanation for the Court's prominence is not judicial assertiveness but that questions the political system failed to resolve arrived in court.

3. The Executive and Parliament

Covered in detail in **2.2**; the essentials for this topic:

- **Fusion.** Ministers are drawn from and sit in Parliament; the government commands a majority by definition.
- **Control.** The government sets the timetable, drafts bills, commands committee majorities and can guillotine debate.
- **Discipline.** Whips, patronage and the payroll vote of around 140.
- **The counterweight.** Small majorities transfer power to backbenchers; select committees since the Wright reforms; the Lords' revising work; confidence.

Hailsham's **elective dictatorship** is the term to deploy: the concern is structural — because the executive is drawn from and controls the legislature, and because Parliament is sovereign with no codified constitution or entrenched rights, a government with a majority faces few effective constraints between elections.

4. The European Union and its impact

Aspect	While a member	After withdrawal
Legal supremacy	EU law took precedence; <i>Factortame</i> (1990) established UK courts could disapply an Act conflicting with directly effective EU law	Ended. The European Union (Withdrawal) Act 2018 retained much EU law domestically, but without supremacy over later Acts
Policy competence	Agriculture, fisheries, trade, competition, environmental standards, aspects of employment law determined at EU level	Returned to Westminster and, contentiously, to the devolved institutions
Institutions	UK ministers in the Council; UK MEPs; references to the Court of Justice	Ended; a new trade and cooperation framework governs the relationship
Politics	Divided both major parties for decades; contributed to the fall of Thatcher; dominated Major's premiership; drove the rise of UKIP	Introduced a cleavage cutting across the left-right axis that persists in party support

The **four freedoms** — goods, services, capital, people — are the single market's content, and free movement of people was the most politically consequential of the four.

5. Where does sovereignty lie?

Type	Location	Evidence
Legal sovereignty	Parliament	May legislate on anything; no Parliament binds its successors; no court may set aside an Act. Brexit demonstrated this concretely
Political sovereignty	The electorate	General elections; referendums; the doctrine of the mandate
In practice	The executive	A government with a Commons majority controls what Parliament does — Hailsham's

		point
Constrained by	Devolution, rights law, international agreements, referendum expectations	Legally reversible, politically not

The judgement: legal sovereignty is undivided and sits with Parliament. Political sovereignty is shared between the electorate, the executive and the devolved institutions, and the gap between the two has widened considerably since 1997. Brexit is the strongest evidence for the doctrine's survival — a constraint widely described as permanent turned out not to be.

6. Does the UK have a separation of powers?

The judiciary: yes. The CRA 2005 separated it genuinely, and the Court has ruled against government on the most charged questions available.

The political branches: no. Executive and legislature are fused by design. The check on the executive is internal to the body it controls, which is why effectiveness depends on parliamentary arithmetic.

The judgement: the UK separates the judiciary and fuses the political branches — a partial separation, and a deliberate one. Compared with the US, it concentrates power and delivers decisive government at the cost of weak legislative restraint; the US disperses power and gets genuine checks plus gridlock. Neither is straightforwardly superior; they trade the same two goods in opposite proportions.

Quick recall

- CRA 2005: Supreme Court, 12 justices, Law Lords removed from the legislature, JAC created
- Independence: tenure, Consolidated Fund salaries, JAC, sub judice. Neutrality is the contested one
- The Court may declare incompatibility — it may **not** strike down an Act
- Belmarsh 2004, *Miller* 2017, *Miller/Cherry* 2019, *Evans* 2015
- Both *Miller* cases defended Parliament against the executive

- Elective dictatorship (Hailsham) — the structural concern about fusion
- EU: left 31 Jan 2020, transition ended 31 Dec 2020; *Factortame* 1990 for supremacy while a member
- Legal sovereignty with Parliament; political sovereignty shared; the gap has widened since 1997